

# Huma-Num Terms of Use

Version in progress.

The purpose of this article is to define the rules and practices that must be respected by the users of the various services provided by Huma-Num as part of its “service grid”. This text is not exhaustive in terms of responsibilities, laws or ethics; in particular it does not replace the laws<sup>[1]</sup> or the rules and practices in effect in the higher education and research system or in the institution to which the user belongs<sup>[2]</sup>.

## Preliminary

In this document, the term “service grid” refers to the IT infrastructure set up by Huma-Num which offers a set of interconnected IT services. The term “IT services” is generally used for the provision of services dedicated to Humanities and Social Sciences research data processing, promotion and preservation: calculation, storage or hosting spaces, applications offered and managed by Huma-Num, virtual servers, long-term archiving, etc. without this list being exhaustive.

## Access Conditions

To request the use of services from the service grid, the user must be from the academic world and the scientific project must be validated by the TGIR Huma-Num. In addition, projects likely to use the service grid must be part of an approach favouring at least two of the three following criteria:

- specific data processing needs (enrichment, annotation, calculation, tagging and pushing, etc.)
- a commitment to the interoperability of research data and associated metadata (metadata highlighting on the ISIDORE platform)
- long-term data archiving.

The services are intended to be used only in the context of the user's professional activity. The provision of services is strictly restricted to the project for which it was opened.

Requests to open an account are made by email to [cogrid@huma-num.fr](mailto:cogrid@huma-num.fr). To enable the Huma-Num team to examine your request, the project manager is invited to give us as much information as possible about his/her needs: a brief introduction to the scientific project, the (scientific and technical) managers, the administrative support structure, the services requested, the planned volumetry, the data type and the technologies used.

## User Responsibility

The scientific and technical project managers are responsible for the legal compliance of their data. In particular, they ensure that the content dissemination

complies with laws and regulations. They are also responsible for ensuring that the data can be communicated. If data are subject to the measures of the French Data Protection Act, the project managers must fulfill the formalities required by the CNIL and ensure that the data processing complies with legal requirements.

In addition, the scientific and technical project managers commit to comply with the General Data Protection Regulation (GDPR) of the European Union. The CNIL registered data protection officer for the CNRS offers some [resources](#) for that. The scientific and technical managers must ensure the durability of the internet naming that enables access to their resources.

The user commits to regularly update the software and applications introduced on the infrastructure. As such, he/she must make sure before implementing them that he/she has the technical expertise to carry out the updates over time. Huma-Num reserves the right to suspend the service provision if the updates are not made. The user is subject to the constraints of Huma-Num exploitation plans and accepts temporary service interruptions, in particular related to maintenance shutdowns. In the event of service interruption, the user will be informed.

## **Huma-Num Responsibility**

The TGIR Huma-Num commits to ensure maximum availability of the various IT services offered to the user. Nevertheless, it cannot be held responsible for their unavailability.

In the event of service interruption, the TGIR Huma-Num will make every effort to restore the service provision as quickly as possible without being able to guarantee in any way the duration of this period. In no case will it be responsible for any damage that may be caused by a service interruption, whether the cause is internal or external.

The TGIR Huma-Num reserves the right to take, without notice, any measure intended to guarantee the durability and security of its IT services.

The TGIR Huma-Num does not perform any operation or processing on data apart from their preservation. The same holds for the applications introduced by the user. The TGIR Huma-Num provides an address for service support: [assistance@huma-num.fr](mailto:assistance@huma-num.fr).

## **Service duration**

The terms of use of Huma-Num's services take effect as soon as an account is opened on the service grid. These services can be stopped on express request of the project manager or the person appointed to succeed him/her.

The provision of a service expires at the time of the end, even temporary, of the professional activity that justified it. The user is responsible for informing the TGIR Huma-Num of the termination of his/her affiliation to the project or of the end of the

project. The TGIR Huma-Num reserves the right to contact the project manager in case of:

- prolonged inactivity of the service put in place
- obvious failure to respect the general terms of use
- failure to respect the criteria that allowed access to the service
- and in case of lack of response beyond 30 days to suspend the service.

## Advertising Obligation

Huma-Num reserves the right to publish the list of projects including information collected through the form when opening the service (introduction to the project, type of data processed, etc.) for communication about its different activities. The scientific and technical managers of the project must ensure that they regularly transmit all the necessary modifications to the TGIR Huma-Num.

The user commits to cite the support provided by the TGIR Huma-Num in all documents related to the project and on the web materials. This mention will be followed by the Huma-Num logo available at this address <https://www.huma-num.fr/ressources/boite-a-logos> and will link to the TGIR Huma-Num website.

In order to ensure the best monitoring possible for each project, every interaction with the TGIR Huma-Num should, as far as possible, be done electronically via the following addresses:

- [cogrid@huma-num.fr](mailto:cogrid@huma-num.fr) for access requests and for updating project data
- [assistance@huma-num.fr](mailto:assistance@huma-num.fr), for support and assistance requests.

## Application of the agreement

The use of the service(s) offered by Huma-Num entails the total acceptance of these terms and conditions of use. In case of failure to respect the rules stated in this agreement, the service(s) offered by the TGIR Huma-Num may be partially or totally suspended.

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[1] All the users of the service grid, regardless of their status, are subject to the French legislation in effect and particularly to:

- the amended Law of 29 July 1881 on Freedom of the Press, the amended Act n°78-17 of 6 January 1978 on Information Technology, Data Files and Civil Liberties,
- legislation on breaches of automated data processing systems (art. L323-1 et seq. of the French Penal Code)
- the amended Law n° 94-665 of 4 August 1994 on the use of the French language - the Law n° 2004-575 of 21 June 2004 on trust in the digital economy
- provisions of the French Intellectual Property Code on artistic and literary property

<sup>[2]</sup> The user should refer in particular to the IT charters of [RENATER](#), the [CNRS](#), the [CC-In2p3](#) and the [CINES](#).

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